IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.1

CA (CAA) No.28/Chd/Hry/2025
(1st Motion)

IN THE MATTER OF:

Okaya Power Pvt. Ltd. & Ors. ... Applicant Companies

Under Section: 230-232, CA 2013

Order delivered on 12.06.2025

CORAM:
SHRI. K. K. SINGH, **SHRI. PRAVEEN GUPTA,**
HON'BLE MEMBER (T) **HON'BLE MEMBER (J)**

PRESENT:-
For the Applicant Companies : Ms. Ria Agarwal along with Mr. S. Shiva, Advocates

ORDER

1. This is a First Motion Application filed under Sections 230-232 of the Companies Act, 2013, seeking dispensation of meetings in respect of the proposed Scheme of Merger and Demerger.

2. It is noted that the Petitioner Companies have also sought dispensation of the meeting of unsecured creditors on the basis of consent received from approximately 90% in terms of value. However, on perusal of the list of unsecured creditors, it is noted that the consents appear to have been obtained predominantly from related parties, such as promoters or group entities.

3. In this context, the Petitioner Companies are directed to submit a segregated list of unsecured creditors in following two categories :-

   (i) Unsecured debt from promoters and group concerns, and

(ii) all other unsecured creditors.

4. Accordingly, the request for dispensation would be considered as per the law. It must also be ensured that the figures tally with the respective balance sheet figures.

5. With this, list the matter on 24.07.2025 Higher on Board.

Sd/- Sd/-

(K. K. SINGH) **(PRAVEEN GUPTA)**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

Mamta
12.06.2025